

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF DANILCHENKO AND OTHERS v. RUSSIA

(Applications nos. 3652/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

20 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Danilchenko and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 30 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to compile an offence report at the rally venue

or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the lack of a prosecuting party in criminal proceedings under the CAO; and *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 402-78, 7 February 2017, regarding restrictions on location or time of public events.

V. REMAINING COMPLAINTS

13. In view of the findings in paragraphs 11 and 12 above, there is no need to examine other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	María Elósegui President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	3652/18 08/01/2018	**Yevgeniy Anatolyevich DANILCHENKO** 1980	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 28/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
2.	3675/18 08/01/2018	**Anastasia Lvovna AKOLZINA** 1997	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/07/2017		3,500
3.	3679/18 08/01/2018	**Olga Vladimirovna LOZINA** 1989	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 14/07/2017		3,500
4.	4035/18 08/01/2018	**Vladislav Arturovich AKOLZIN** 1993	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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5.	4060/18 08/01/2018	**Stanislav Mikhailovich CHINDIN** 1997	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 28/07/2017	Art. 5 (1) - unlawful detention - on 26-27/03/2017 detention in a police station for compiling an offence report	4,000
6.	5253/18 17/01/2018	**Aleksey Vladislavovich IVANOV** 1979	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 18/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
7.	7239/18 22/01/2018	**Artur Vagifovich BALAKISHEV** 1996	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Kaliningrad 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 17/08/2017	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	10057/18 08/02/2018	**Ivan Pavlovich DEMIN** 1972	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
9.	11600/18 16/02/2018	**Anton Aleksandrovich BYKOV** 1987	Laptev Aleksey Nikolayevich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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10.	13022/18 22/02/2018	**Ilya Igorevich TITOV** 1994	Peredruk Aleksandr Dmitriyevich St Petersburg	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 24/08/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	13243/18 15/02/2018	**Kirill Olegovich NORINSKIY** 1999	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 15/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
12.	14455/18 13/03/2018	**Igor Vladimirovich NELOGOV** 1985	Makarova Yelena Anatolyevna Yekaterinburg	Opposition rally Yekaterinburg 23/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 01/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
13.	15809/18 19/03/2018	**Viktor Nikolayevich KASYANOV** 1986	Dobralskiy Aleksandr Igorevich Kaliningrad	Anticorruption rally Kaliningrad 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 14/09/2017 (received on 09/10/2017)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
14.	15811/18 19/03/2018	**Aleksandr Sergeyevich KAZANOVSKIY** 1990	Dobralskiy Aleksandr Igorevich Kaliningrad	Anticorruption rally Kaliningrad 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 07/09/2017 (received on 02/11/2017)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
15.	15812/18 19/03/2018	**Aleksandr Sergeyevich DUVANOV** 1994	Dobralskiy Aleksandr Igorevich Kaliningrad	Anticorruption rally Kaliningrad 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 14/09/2017 (received on 20/09/2017)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
16.	19761/18 11/04/2018	**Yuriy Aleksandrovich BELSKIY** 1985	Antokhin Yevgeniy Vyacheslavovich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/10/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to a police station for compiling an offence report	4,000
17.	23417/18 05/05/2018	**Aleksandr Valeryevich KHIMICH** 1996	Benyash Mikhail Mikhaylovich Sochi	Rally to support A. Navalnyy Krasnodar 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Krasnodar Regional Court 13/11/2017		3,500
18.	23880/18 04/05/2018	**Vitaliy Mikhaylovich MOLODANOV** 1973	Benyash Mikhail Mikhaylovich Sochi	Rally to support A. Navalnyy Krasnodar 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 06/12/2017		3,500
19.	36242/18 19/07/2018	**Artur Dmitriyevich BELYAKOV** 1999	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally to support A. Navalnyy Chelyabinsk 07/10/2017	Article 20.2 § 1 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 19/01/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - concerning the rally on 07/10/2017,	3,500

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								Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Chelyabinsk town administration refused to give official approval for another rally planned for 08/10/2017 (final decision on 05/09/2018, Supreme Court of Russia)	
20.	44205/18 07/09/2018	**Marina Samuyelovna DEDALES** 1989	Zboroshenko Nikolay Sergeyevich Mytishchi	LGBT-rights event Moscow 11/05/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/07/2018	Art. 5 (1) - unlawful detention - on 11/05/2017 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.